IN THE DISTRICT COURT OF APPEAL OF THE STATE OF FLORIDA
FOURTH DISTRICT

BRITTANY STODDARD,
Appellant,

v.

BANK OF AMERICA, N.A.,
Appellee.
_____/

DCA CASE NO. 4D2026-1699

L.T. CASE NO. 562025SC003745AXXXHC

ON APPEAL FROM THE COUNTY COURT OF THE NINETEENTH JUDICIAL CIRCUIT IN AND FOR ST. LUCIE COUNTY, FLORIDA

ANSWER BRIEF OF APPELLEE

Drew Linen, Esq.
Florida Bar No. 121577
Hayt, Hayt & Landau, P.L.
14750 NW 77th Court, Suite 100
Miami Lakes, Florida 33016
(305) 661-6660
dlinen@haytfla.com
Counsel for Appellee

TABLE OF CONTENTS

PRELIMINARY STATEMENT 7

STATEMENT OF THE CASE AND FACTS 7

SUMMARY OF ARGUMENT 10

STANDARD OF REVIEW 12

ARGUMENT 13

I. WITHOUT A TRANSCRIPT OR STATEMENT OF THE EVIDENCE, APPELLANT CANNOT OVERCOME THE PRESUMPTION THAT THE FINAL JUDGMENT IS CORRECT. 13

A. Applegate requires affirmance when the appellant provides no record of the trial. 14

B. Rule 9.200(b)(5) gave Appellant the means to reconstruct the record, and she did not use it. 16

C. No error appears on the face of the Final Judgment. . 17

II. SUMMARY DISPOSITION ON LIABILITY WAS PROPER BECAUSE APPELLANT ADMITTED EVERY MATERIAL FACT. 18

III. THE FCBA COUNTERCLAIM AND DEFENSE ARE FACTUALLY AND LEGALLY UNSUPPORTABLE. 20

IV. THE FCCPA COUNTERCLAIM WAS REJECTED AT TRIAL AND IS BOTH FACTUALLY AND LEGALLY UNSUPPORTABLE. 23

A. The trial court rejected the claim on the facts, and that finding is presumed correct. 24

B. The claim also fails as a matter of law. 26

C. The FCCPA theories Appellant does not brief are abandoned. 27

V. APPELLANT'S REMAINING ARGUMENTS PROVIDE NO BASIS FOR REVERSAL. 28

CONCLUSION 31

Certificate of Service 32

Certificate of Compliance 32

TABLE OF AUTHORITIES

Cases

Aills v. Boemi, 29 So. 3d 1105 (Fla. 2010) 22, 29

Albear v. Hillman-Waller, 275 So. 3d 690 (Fla. 3d DCA 2019) 14

Applegate v. Barnett Bank of Tallahassee, 377 So. 2d 1150 (Fla. 1979) 11, 12, 14, 15, 18, 21, 25

Brown v. Estate of Stuckey, 749 So. 2d 490 (Fla. 1999) 12

Canakaris v. Canakaris, 382 So. 2d 1197 (Fla. 1980) 13, 31

Casella v. Casella, 569 So. 2d 848 (Fla. 4th DCA 1990) 14

Chisholm v. Chisholm, 538 So. 2d 961 (Fla. 3d DCA 1989) . 17

Colombo v. Robertson, Anschutz & Schneid, P.L., 341 So. 3d 1126 (Fla. 4th DCA 2022) 26

Cong. Park Office Condos II, LLC v. First-Citizens Bank & Tr. Co., 105 So. 3d 602 (Fla. 4th DCA 2013) 30

Cornette v. I.C. Sys., Inc., 280 F. Supp. 3d 1362 (S.D. Fla. 2017) 26

Davis v. Sheridan Healthcare, Inc., 281 So. 3d 1259 (Fla. 2d DCA 2019) 26

Edman v. Edman, 407 So. 3d 452 (Fla. 4th DCA 2025) 12, 16

Farley v. Chase Bank, U.S.A., N.A., 37 So. 3d 936 (Fla. 4th DCA 2010) 18

Fortune v. Pantin, 851 So. 2d 274 (Fla. 5th DCA 2003) 12, 14

Friedman v. N.Y. Life Ins. Co., 985 So. 2d 56 (Fla. 4th DCA 2008) 19

Lopez v. Hall, 233 So. 3d 451 (Fla. 2018) 12

Miranda v. RBS Citizens, N.A., 253 So. 3d 746 (Fla. 3d DCA 2018) 16

Polyglycoat Corp. v. Hirsch Distribs., Inc., 442 So. 2d 958 (Fla. 4th DCA 1983) 28

Prymus v. Prymus, 753 So. 2d 742 (Fla. 3d DCA 2000) 15

Robertson v. State, 829 So. 2d 901 (Fla. 2002) 18, 26

Shaw v. Shaw, 334 So. 2d 13 (Fla. 1976) 12, 25

Snowden v. Wells Fargo Bank, 172 So. 3d 506 (Fla. 1st DCA 2015) 15

Volusia County v. Aberdeen at Ormond Beach, L.P., 760 So. 2d 126 (Fla. 2000) 12

Statutes and Regulations

15 U.S.C. § 1666 ..... 8, 11, 20, 21

§ 559.72, Fla. Stat. 8, 26, 27

§ 559.77(2), Fla. Stat. 27

12 C.F.R. § 1026.13 ..... 20, 22, 23

Rules

Fla. R. App. P. 9.200(b) 9, 11, 16, 17

Fla. R. Civ. P. 1.190 29

Fla. R. Civ. P. 1.350(b) 30

Fla. R. Civ. P. 1.370(a) 30

Fla. R. Gen. Prac. & Jud. Admin. 2.330(j) 31

Fla. R. Gen. Prac. & Jud. Admin. 2.514(a) 30

Fla. R. Gen. Prac. & Jud. Admin. 2.515(a) 30

Fla. Sm. Cl. R. 7.020 ..... 29, 30

Fla. Sm. Cl. R. 7.135 18

Fla. Sm. Cl. R. 7.180 30

Fla. Sm. Cl. R. 7.190 31

PRELIMINARY STATEMENT

Appellant, Brittany Stoddard, the defendant and counter-plaintiff below, will be referred to as "Appellant." Appellee, Bank of America, N.A., the plaintiff and counter-defendant below, will be referred to as "Appellee." Citations to the Record on Appeal appear as "(R. __)," and citations to Appellant's Initial Brief appear as "(IB. __)."

STATEMENT OF THE CASE AND FACTS

Appellee accepts Appellant's Statement of the Case and Facts only to the extent it is supported by the record.

Appellant opened a Bank of America credit-card account in 2019, used the credit extended through it, received monthly statements, and defaulted; the account was charged off on September 30, 2024. (R. 025-026, 266-267, 326-327). She admitted these facts in both of her answers (R. 020-021, 258-259), and she pleaded that Appellee is the "original creditor" (R. 030). Her grievance is that Appellee's statements and communications led her

to believe the account would be reactivated once she paid the balance below the credit line. (R. 260-262, 267, 270-273).

Appellee sued in small claims court for account stated and breach of contract, seeking $1,761.94. (R. 010-014). Appellant counterclaimed under the Fair Credit Billing Act ("FCBA"), 15 U.S.C. § 1666, the Florida Consumer Collection Practices Act ("FCCPA"), § 559.72, Fla. Stat., and other federal statutes, and her amended counterclaim also named Appellee's counsel. (R. 024-033, 264-285). Even so, she alleged only that $208.36 of the balance consisted of improperly accrued interest and fees, so that "the recoverable amount should not exceed $1,553.58." (R. 025, 265). At an October 29, 2025 hearing attended by both parties, the court dismissed Appellee's counsel as a party, granted Appellee summary disposition on liability and on Appellant's counterclaim under the Fair Debt Collection Practices Act ("FDCPA"), and set damages and the remaining counterclaims for trial. (R. 666, 692; see R. 254). The next day, Appellant served requests for production and admissions. (R. 680-685; IB. 8). Appellee served its responses on December 1, 2025. (R. 1080-1084, 1378-1384).

Damages and the remaining counterclaims, including the FCBA and FCCPA counterclaims, were tried before the court on December 4, 2025. (R. 686-689, 1386). Appellee presented a records custodian, whom Appellant cross-examined. (R. 1386, 1457 ¶ 51). On February 20, 2026, after denying Appellant's motion for new trial (R. 1387-1398, 1420), the court entered a Final Judgment, reciting that it had "heard testimony from Plaintiff and the Defendant." (R. 1421). The judgment awards Appellee the principal sum of $1,761.94 and $249.85 in court costs, and it provides: "As to the Counterclaims, the Court finds in favor of the Plaintiff/ Counterdefendant who shall go hence without day." (R. 1385, 1421). Appellant acknowledges that "no court reporter was present and no transcript exists." (IB. 26). She did not submit a statement of the evidence under Florida Rule of Appellate Procedure 9.200(b)(5).

Nearly two months after trial, Appellant served interrogatories and moved to compel. (R. 1400-1419). After the Final Judgment, she moved for rehearing and relief from judgment and, after the trial judge recused, moved the successor judge for reconsideration.

(R. 1427-1430, 1445-1446, 1449-1460). Following a hearing, the successor judge found that Appellant had presented no new case law or evidence, reached "the same conclusion as the preceding judge," and ordered that the February 20, 2026 Judgment "remains in effect." (R. 1474, 1493). Appellant's amended notice of appeal, which names only Appellee, seeks review of the November 6, 2025 summary-disposition order, the Final Judgment, and the June 5, 2026 order. (R. 1500-1503).

SUMMARY OF ARGUMENT

Appellant admits she opened this credit-card account, used it, and stopped paying. Below, she disputed at most $208.36 of the $1,761.94 balance. Her appeal nonetheless asks this Court to hold that Appellee's statements about reactivating the account erased her obligation to repay credit she had already received, and to direct judgment for her on her counterclaims. Every issue she raises fails at the threshold.

The Final Judgment followed a nonjury trial at which the court heard testimony from both parties, tried the remaining

counterclaims, and found in Appellee's favor. Appellant concedes there is no transcript, and she prepared no statement of the evidence under Rule 9.200(b)(5). The judgment is therefore presumed correct, review is confined to errors on its face, and none appears. See *Applegate v. Barnett Bank of Tallahassee*, 377 So. 2d 1150, 1152 (Fla. 1979). That rule disposes of Appellant's challenges to the Final Judgment, to the counterclaims, to the court's handling of her trial evidence, and to the denial of a new trial.

The rulings are also correct on the law. Summary disposition on liability was proper because Appellant admitted every element of Appellee's claims; her only quarrel with the balance concerned interest and fees, a damages question that was reserved and tried. The counterclaims are both factually and legally unsupportable. The trial court found against Appellant on the facts, and that finding is presumed correct. On the law, a dispute about whether an account will be reactivated is not a billing error, and even a valid FCBA claim caps a creditor's forfeiture at $50. See 15 U.S.C. § 1666(e). The FCCPA theory Appellant briefs requires an illegitimate debt and actual knowledge of its illegitimacy, and a

request that Appellant pay a debt she admittedly owes supplies neither. Her remaining arguments were not preserved or show no prejudice.

STANDARD OF REVIEW

Summary disposition and questions of statutory interpretation are reviewed de novo. See *Volusia County v. Aberdeen at Ormond Beach, L.P.*, 760 So. 2d 126, 130 (Fla. 2000); *Lopez v. Hall*, 233 So. 3d 451, 453 (Fla. 2018). A judgment entered after a nonjury trial is presumed correct, and the appellant bears the burden of demonstrating error. See *Applegate*, 377 So. 2d at 1152. An appellate court may not reweigh the evidence. See *Shaw v. Shaw*, 334 So. 2d 13, 16 (Fla. 1976). Where the appellant provides no transcript or approved statement of the evidence, review is limited to errors appearing on the face of the judgment. See *Fortune v. Pantin*, 851 So. 2d 274, 274 (Fla. 5th DCA 2003); *Edman v. Edman*, 407 So. 3d 452, 455 (Fla. 4th DCA 2025). Rulings on motions for new trial, rehearing, reconsideration, and relief from judgment are reviewed for abuse of discretion. See *Brown v. Estate of Stuckey*,

749 So. 2d 490, 497-98 (Fla. 1999); *Canakaris v. Canakaris*, 382 So. 2d 1197, 1203 (Fla. 1980).

ARGUMENT

I. WITHOUT A TRANSCRIPT OR STATEMENT OF THE EVIDENCE, APPELLANT CANNOT OVERCOME THE PRESUMPTION THAT THE FINAL JUDGMENT IS CORRECT.

This case did not end on pretrial motions. The court tried damages and Appellant's remaining counterclaims, heard testimony from both parties, and found for Appellee on all of them. (R. 1386, 1421). Appellant's own post-trial filings confirm that Appellee's records custodian testified and was cross-examined. (R. 1457 ¶ 51). Much of Appellant's brief asks this Court to revisit that trial: whether her communications were valid billing-error notices, whether Appellee's statements were knowingly false, how the court handled her exhibits, and how the evidence should be weighed. (IB. 21-28). There is no record from which this Court can do so.

A. Applegate requires affirmance when the appellant provides no record of the trial.

"In appellate proceedings the decision of a trial court has the presumption of correctness and the burden is on the appellant to demonstrate error." *Applegate*, 377 So. 2d at 1152. The Florida Supreme Court explained why a missing transcript is fatal:

> "When there are issues of fact the appellant necessarily asks the reviewing court to draw conclusions about the evidence. Without a record of the trial proceedings, the appellate court can not properly resolve the underlying factual issues so as to conclude that the trial court's judgment is not supported by the evidence or by an alternative theory. Without knowing the factual context, neither can an appellate court reasonably conclude that the trial judge so misconceived the law as to require reversal."

Id. The judgment in *Applegate* "should have been affirmed because the record brought forward by the appellant is inadequate to demonstrate reversible error." *Id.*

The district courts apply this rule consistently to un-transcribed bench trials. See *Fortune*, 851 So. 2d at 274 (absent a transcript, review "is therefore limited to errors of law that are apparent on the face of the judgment") (citing *Casella v. Casella*, 569 So. 2d 848, 849 (Fla. 4th DCA 1990)); *Albear v. Hillman-Waller*,

275 So. 3d 690 (Fla. 3d DCA 2019) (affirming judgment entered after bench trial held without a court reporter); *Prymus v. Prymus*, 753 So. 2d 742 (Fla. 3d DCA 2000) (without a transcript or proper substitute, "the presumption of correctness which attaches to this final judgment remains intact"). The rule applies with equal force in actions by lenders. See *Snowden v. Wells Fargo Bank*, 172 So. 3d 506, 507 (Fla. 1st DCA 2015) (affirming because the court was "unable to rule out the possibility that the trial court heard competent substantial evidence to support Wells Fargo's standing"). The appellants in *Snowden* had a partial transcript. Appellant has none.

Applegate controls every trial-based ruling Appellant challenges, including the rejection of her counterclaims. Whether she sent a qualifying written billing-error notice, whether Appellee's statements were false or misleading, whether Appellee knew it, and whether Appellant suffered damages are fact questions the court resolved against her at trial. So is the balance owed. Her complaints that the court excluded her credit report and limited her exhibits (IB. 26-28) cannot be evaluated without knowing what was offered,

what objections were made, and what the court said. Her motion for new trial likewise asked the trial court to revisit evidence of which there is no record. (R. 1387-1398). The same is true of the October 29, 2025 hearing, which both parties attended and argued, and of which there is no transcript. (R. 666, 692).

B. Rule 9.200(b)(5) gave Appellant the means to reconstruct the record, and she did not use it.

When no transcript exists, "a party may prepare a statement of the evidence or proceedings from the best available means, including the party's recollection," which is served on the other parties and then settled and approved by the lower tribunal. Fla. R. App. P. 9.200(b)(5). The rule exists for exactly this situation: a bench trial held without a court reporter. (IB. 26). Appellant prepared no such statement. Absent "a trial transcript or other record," this Court's "review is limited to those errors that may appear on the face of the final judgment." *Edman*, 407 So. 3d at 455.

Nor does it matter why the record is missing. In *Miranda v. RBS Citizens, N.A.*, 253 So. 3d 746 (Fla. 3d DCA 2018), the court

reporter's notes of a foreclosure trial were stolen, yet the Third District affirmed because the borrowers never attempted to reconstruct the record under former Rule 9.200(b)(4), now Rule 9.200(b)(5). The court was "under no obligation to afford Appellants 'a second opportunity to create an entire transcript because [they] ignored the rule when the record on appeal was being prepared,'" and it "must affirm the final judgment." *Id.* at 748-49 (quoting *Chisholm v. Chisholm*, 538 So. 2d 961, 963 (Fla. 3d DCA 1989)). If appellants whose transcript was stolen cannot obtain reversal, Appellant, who never sought to reconstruct the trial at all, cannot either.

C. No error appears on the face of the Final Judgment.

The Final Judgment identifies the parties, recites that the court heard testimony from both sides, and awards $1,761.94, the same principal amount demanded in the Complaint. (R. 010-012, 1421). It awards only that principal and $249.85 in court costs, which are supported by a costs declaration, with no interest or attorney's fees requiring separate authorization, and the county court had jurisdiction over a $1,761.94 small claims action. (R.

1385, 1421). Every challenge Appellant raises to the judgment instead turns on what the evidence did or did not show, which is precisely what *Applegate* holds an appellate court cannot resolve without a record. 377 So. 2d at 1152. And even if the trial court's reasoning were flawed, its judgment "will generally be affirmed if the evidence or an alternative theory supports it." *Id.*; see also *Robertson v. State*, 829 So. 2d 901, 906 (Fla. 2002). As shown below, the existing record independently supports the judgment.

II. SUMMARY DISPOSITION ON LIABILITY WAS PROPER BECAUSE APPELLANT ADMITTED EVERY MATERIAL FACT.

"At pretrial conference or at any subsequent hearing, if there is no triable issue, the court shall summarily enter an appropriate order or judgment." Fla. Sm. Cl. R. 7.135. In this case, there was no triable issue on liability.

An account stated is established where periodic statements have "been rendered to and received by one who made no objection thereto within a reasonable time," and an objection that does not challenge the amounts "impliedly admit[s] the correctness of the amounts on the account stated." *Farley v. Chase Bank, U.S.A., N.A.*,

37 So. 3d 936, 937 (Fla. 4th DCA 2010). The debtor can overcome that showing only by proving "fraud, mistake[,] or error" in the account. *Id.* Appellant admitted that she and Appellee had business transactions and that monthly statements were provided to her. (R. 021 ¶¶ 9-10; R. 258 ¶¶ 9-10; see R. 326-327). Her objections concerned reactivation, not any charge reflected on the statements. (R. 260-262, 270-273). The only amount she ever challenged was $208.36 in interest and fees that, she contended, would not have accrued had Appellee charged off the account sooner, and even on that theory she conceded that the amount owed was $1,553.58. (R. 025, 265). That is a complaint about the timing of charge-off, not fraud, mistake, or error in the account, and it went at most to damages, which were reserved and tried. (R. 692, 1421).

The same admissions independently establish breach of contract: a valid contract, a material breach, and damages. See *Friedman v. N.Y. Life Ins. Co.*, 985 So. 2d 56, 58 (Fla. 4th DCA 2008). Appellant admitted that she and Appellee entered into an agreement for the account and that she accepted its terms by using the card (R. 259 ¶¶ 15-16), that she defaulted and the account was

charged off (R. 258 ¶ 12), and that she stopped paying (R. 268 ¶ 20). Whether Appellee would later restore her credit privileges is immaterial to whether she must repay credit already advanced, and she identifies no release, novation, settlement, or forgiveness that discharged the debt.

III. THE FCBA COUNTERCLAIM AND DEFENSE ARE FACTUALLY AND LEGALLY UNSUPPORTABLE.

Appellant contends that Regulation Z deprived Appellee of any right of action (IB. 16-17) and that the court misapplied the FCBA to "undisputed facts" in rejecting her counterclaim (IB. 21-22). Both arguments fail on the facts and on the law.

The facts: The FCBA counterclaim was tried, and the court found for Appellee. (R. 1421). Whether Appellant sent a written billing-error notice that Appellee received within 60 days of the relevant statement, what that notice said, and how Appellee responded are fact questions. See 15 U.S.C. § 1666(a); 12 C.F.R. § 1026.13(b). They were not undisputed. Appellant herself has described the dispute differently: her amended counterclaim alleged an August 30, 2024 written dispute challenging the "validity of

charges" because the agreement was "potentially voidable" (R. 282 ¶ 77), while her brief places it on September 16, 2024 (IB. 16). These questions were decided against Appellant at a trial of which there is no record, and those findings are presumed correct. See *Applegate*, 377 So. 2d at 1152. Her suggestion that Appellee's representative "acknowledged that the payments were not being accurately reflected" (IB. 22) is exactly the kind of contested evidence the trial court was entitled to weigh, and it is contradicted by her own reliance on the statements that reflected those payments (IB. 21).

The law: Even on Appellant's version of the facts, the FCBA does not extinguish the debt. A noncompliant creditor "forfeits any right to collect from the obligor the amount indicated by the obligor under paragraph (2) of subsection (a) . . . , and any finance charges thereon, except that the amount required to be forfeited under this subsection may not exceed $50." 15 U.S.C. § 1666(e). Congress answered the question Appellant raises, and the answer is $50, not the entire debt.

Nor did Appellant assert a billing error recognized under Regulation Z. Regulation Z limits that term to seven categories, such as unauthorized charges, goods not delivered, unposted payments, and computational errors. See 12 C.F.R. § 1026.13(a)(1)-(7). By Appellant's own description, her dispute "centered on . . . the statement's representation that future credit would be extended once she became current." (IB. 22). Her pleaded dispute was that the agreement was "potentially voidable." (R. 282 ¶ 77). Whether an account will be reactivated, or whether a contract is voidable, is not a billing error. The theory that Appellee misapplied her payments appears in neither counterclaim (R. 031-032, 282-283); it surfaces for the first time in her post-judgment motion for reconsideration (R. 1449, 1458), which is too late to preserve it. See *Aills v. Boemi*, 29 So. 3d 1105, 1108-09 (Fla. 2010). And the collection restriction Appellant invokes, which bars collecting "any portion of any required payment that the consumer believes is related to the disputed amount" while a qualifying dispute is pending, 12 C.F.R. § 1026.13(d)(1), is temporary and

limited to the disputed amount, *id.* § 1026.13(g). It does not divest a creditor of its right of action on the debt.

IV. THE FCCPA COUNTERCLAIM WAS REJECTED AT TRIAL AND IS BOTH FACTUALLY AND LEGALLY UNSUPPORTABLE.

Appellant's brief narrows her FCCPA claim to a single theory. She contends that Appellee's billing statements from June through August 2024, which stated, "To ensure uninterrupted use of your account, please make a payment to bring your balance under the Total Credit Line," were false because the account could not be reactivated. She further contends that Appellee knew this, that the statements induced payments that delayed charge-off and allowed interest and fees to accrue, and that this conduct was "oppressive" and "reassert[ed] a nonexistent right." (IB. 23-24). She asks this Court to find a "prima facie case" on "undisputed facts" and to direct judgment in her favor. (IB. 23-24, 30). The claim is unsupportable on the facts and on the law.

A. The trial court rejected the claim on the facts, and that finding is presumed correct.

The FCCPA counterclaim was not decided on undisputed facts. By Appellant's own account, at the October 29, 2025 hearing the parties disputed "whether the account had been permanently closed during the relevant period," and the counterclaim was left for trial. (IB. 8; R. 666, 692). Appellee denied her requests to admit that it permanently closed the account in February 2024, that it represented the account as "restricted" rather than closed, and that it told her payments would restore the account to active status. (R. 1378-1379). At trial, the court heard testimony from both parties, received Appellant's evidence, and found "[a]s to the Counterclaims . . . in favor of the Plaintiff/Counterdefendant." (R. 1421; see IB. 10, 26). Appellant concedes that "no transcript exists." (IB. 26).

Each element of Appellant's theory is a question of fact: whether the statements were false or misleading in context, whether Appellee knew they were false when made, whether its conduct was willful, and whether it caused her any damage. Without a record of the trial, this Court must presume that the court resolved each of

those questions against her. See *Applegate*, 377 So. 2d at 1152. The record that does exist shows why. The same statements Appellant quotes disclosed that "the account's Credit Line was in a restricted status and not available for use." (IB. 23; R. 045, 054). And her only evidence of knowledge is a representative's remark, "I am not 100% sure why it states that, but it will not be able to be reactivated." (IB. 24; R. 670). That remark reflects uncertainty, not knowledge of falsity, and it was for the trial court to weigh. See *Shaw*, 334 So. 2d at 16.

Appellant's real complaint is that the court "admitted evidence establishing the account's closure" yet "declined to apply the FCCPA to the facts it established." (IB. 10, 26). That is a request to reweigh the evidence, not a showing of legal error. Her invocation of de novo review of "conclusions following a nonjury trial based upon legal error" (IB. 23) does not change the analysis, because no legal error appears on the face of the judgment, and the relief she seeks, judgment in her favor, would require this Court to find facts in her favor on a record that does not contain them.

B. The claim also fails as a matter of law.

Even accepting Appellant's version of the facts, the claim fails. Section 559.72(9) prohibits attempting to enforce a debt "when such person knows that the debt is not legitimate, or assert[ing] the existence of some other legal right when such person knows that the right does not exist." § 559.72(9), Fla. Stat. A claim under that subsection requires "an illegitimate debt, a threat or attempt to enforce that debt, and knowledge that the debt is illegitimate." *Colombo v. Robertson, Anschutz & Schneid, P.L.*, 341 So. 3d 1126, 1129 (Fla. 4th DCA 2022) (quoting *Davis v. Sheridan Healthcare, Inc.*, 281 So. 3d 1259, 1264 (Fla. 2d DCA 2019)). The knowledge required is actual knowledge. See *Cornette v. I.C. Sys., Inc.*, 280 F. Supp. 3d 1362, 1371 (S.D. Fla. 2017). The debt here was legitimate; Appellant admitted it. (R. 258-259). Asking Appellant to pay down a balance she admittedly owed asserted no right Appellee lacked. At most, the statements concerned whether Appellee would extend future credit, which is not a "legal right" asserted against the debtor at all.

Nor is a monthly billing statement requesting payment of a balance owed conduct that "can reasonably be expected to abuse or harass the debtor." § 559.72(7), Fla. Stat. Appellant's label, "oppressive" (IB. 24), is not the statutory standard, and she identifies no harassing frequency, threat, or abusive communication.

Finally, the claim could not have defeated the judgment in any event. Appellant's alleged injury is the interest and fees that accrued before charge-off (IB. 23; R. 025, 285), and the FCCPA's remedy is actual damages and statutory damages "not exceeding $1,000." § 559.77(2), Fla. Stat. Even a meritorious claim would not have extinguished the debt or entitled Appellant to the judgment she seeks.

C. The FCCPA theories Appellant does not brief are abandoned.

Appellant's counterclaim also pleaded FCCPA theories under subsections (6) and (7) based on credit reporting, collection referrals, collection emails, and the filing of this lawsuit, and theories under subsection (9) based on Appellee's response to her consumer complaint and this lawsuit. (R. 270-274 ¶¶ 29-44). The

court separately granted summary disposition on her FDCPA counterclaim. (R. 692). The Initial Brief argues none of these. (IB. 23-24). "When points, positions, facts and supporting authorities are omitted from the brief, a court is entitled to believe that such are waived, abandoned, or deemed by counsel to be unworthy." *Polyglycoat Corp. v. Hirsch Distribs., Inc.*, 442 So. 2d 958, 960 (Fla. 4th DCA 1983). Nor is the separate FCCPA count against Appellee's counsel, Hayt, Hayt & Landau, P.L. (R. 274-276 ¶¶ 46-51), before the Court. The trial court dismissed the firm as a party at the October 29, 2025 hearing (R. 666), the Initial Brief does not challenge that ruling, and the amended notice of appeal names only Appellee (R. 1500-1503).

V. APPELLANT'S REMAINING ARGUMENTS PROVIDE NO BASIS FOR REVERSAL.

Pleading defects. Appellant contends that the Complaint was defective and that the amended complaints, filed without leave, rendered the action a nullity. (IB. 15). The Complaint pleaded every element of both claims and attached pages of the Credit Card Agreement. (R. 010-014). Appellant answered it on the merits

without moving to dismiss. (R. 020-033). Her only objection to the amended complaints before judgment concerned service (R. 259-260); she first raised the lack of leave in her post-judgment motion for reconsideration (R. 1457 ¶ 48), which is too late to preserve the point. See *Aills*, 29 So. 3d at 1108-09. It also fails on the merits. The amended complaints asserted the same two counts for the same $1,761.94 (R. 068-070), Small Claims Rule 7.020(a) makes Rule 1.190's liberal amendment provisions applicable, and the court "must disregard any error or defect in the proceedings which does not affect the substantial rights of the parties." Fla. R. Civ. P. 1.190(e); see Fla. Sm. Cl. R. 7.020(a). Appellant learned of the amendments, responded to them, and identifies no prejudice. (R. 259).

Discovery. Appellant served her requests for production and admissions on October 30, 2025, the day after the hearing at which the court granted summary disposition on liability (R. 666, 680-685, 692), so they could not have affected that ruling. Appellee served its responses on December 1, 2025 (R. 1080-1084, 1378-1384), the first business day after the thirtieth day, and

therefore timely. See Fla. R. Civ. P. 1.350(b), 1.370(a); Fla. R. Gen. Prac. & Jud. Admin. 2.514(a). Appellant went to trial without moving to compel or for a continuance, and served interrogatories and a motion to compel only after trial. (R. 1400-1419). A court does not err in proceeding where a party "has failed to act diligently in taking advantage of discovery opportunities." *Cong. Park Office Condos II, LLC v. First-Citizens Bank & Tr. Co.*, 105 So. 3d 602, 608-09 (Fla. 4th DCA 2013); see Fla. Sm. Cl. R. 7.020(b). Her claim that Appellee "did not sign its discovery responses" (IB. 25) is refuted by the record, which shows counsel's signature on each response (R. 1084, 1384), and the rules require only an attorney's signature, not an oath. Fla. R. Gen. Prac. & Jud. Admin. 2.515(a); Fla. R. Civ. P. 1.370(a). She identifies nothing discovery would have revealed that could have changed the outcome.

Post-trial motions. Without a transcript, the trial court had no basis to find its judgment contrary to the evidence, and Appellant presented nothing new. See Fla. Sm. Cl. R. 7.180. Her motion for reconsideration before the successor judge fares no better. A disqualified judge's prior rulings "may be reconsidered and vacated

or amended by a successor judge," Fla. R. Gen. Prac. & Jud. Admin. 2.330(j); the rule permits reconsideration but does not require a different result. Contrary to Appellant's contention (IB. 29), the order does not invoke Rule 1.530. The successor judge held a hearing, found that Appellant had presented no new case law or evidence, reached "the same conclusion as the preceding judge," and left the Final Judgment in effect. (R. 1474, 1493). Whatever its label, Appellant's motion established none of the grounds for relief under Rule 7.190. Two judges reaching the same reasonable conclusion is not an abuse of discretion. See *Canakaris*, 382 So. 2d at 1203.

CONCLUSION

Based on the foregoing, this Court should affirm the trial court's rulings.

Respectfully submitted,

/s/ Drew Linen, Esq.
Florida Bar No. 121577

Hayt, Hayt & Landau, P.L.
Counsel for Appellee

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing Answer Brief of Appellee was furnished by e-mail through the Florida Courts E-Filing Portal on October 15, 2026, to:

Brittany Stoddard
stoddardbrittany3@gmail.com

/s/ Drew Linen, Esq.

CERTIFICATE OF COMPLIANCE

I HEREBY CERTIFY that this brief complies with the font requirements of Fla. R. App. P. 9.045(b) and the word limit of Fla. R. App. P. 9.210(a)(2)(B).

/s/ Drew Linen, Esq.